



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 2-13-2026
BY:  JULIANA B. JUTILO
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 28TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON
FEBRUARY 10, 2026

PRESENT:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member/ Acting Municipal Vice- Mayor/ Presiding Officer
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Michael C. Escuyos		SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Nilo S. Bigno		SB Member
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ABSENT:

Hon. Jane V. Plaza		Municipal Vice- Mayor/ Acting Municipal Mayor
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ORDINANCE NO. 23
Series of 2026

**“AN ORDINANCE SUPPORTING THE INSTALLATION, OPERATION, MAINTENANCE AND
MANAGEMENT OF CLOSED-CIRCUIT TELEVISION CAMERA (CCTV) IN STRATEGIC AREAS OF THE
MUNICIPALITY OF CARMEN, PROVINCE OF SURIGAO DEL SUR, PROVIDING POLICIES, PRIVACY USE
OF FOOTAGE, RESPONSIBLE ENTITIES, FUNDING AND FOR OTHER PURPOSES”**

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, Republic Act No. 7160 otherwise known as the Local Government Code of 1991 mandates the Local Government Units (LGU) to maintain peace and order, protect public safety and promote the general welfare of the residents;

WHEREAS, Republic Act No. 10173 otherwise known as the Data Privacy Act of 2012 provides guidelines for the collection, storage and use of personal information to safeguard individual privacy rights;

WHEREAS, the Department of Interior and Local Government (DILG) Memorandum Circular No. 2014-119 encourages LGU's to adopt a technology driven solutions to enhance public safety and crime prevention;

WHEREAS, the Sangguniang Bayan has approved the installation of Closed- Circuit Television Camera (CCTV) in identified strategic locations across the Municipality to deter criminal activities, assist in incident investigation, manage traffic flow and ensure public safety in high-risk areas;

WHEREAS, there is a need to establish a clear policies and guidelines for the operation, maintenance and responsible use of these CCTV system to ensure compliance with laws and protect the rights of individuals;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

Section 1. SHORT TITLE- This Ordinance shall be known as the "MUNICIPAL CCTV SYSTEM SUPPORT AND MANAGEMENT ORDINANCE 2026."

Section 2. DECLARATION OF POLICY- It is hereby declared the policy of the Municipality of Carmen, Surigao del Sur to:

1. Prioritize Public Safety by recognizing the technology driven solutions such as CCTV system which are vital and important in deterring criminal activities, preventing public disturbance, ensuring quick emergency response and protecting the lives, properties and well-being of the residents, visitors and stakeholders within the Municipality.
2. Comply with National Mandates to align with the provisions of Republic Act No. 7160 otherwise known as the Local Government Code of 1991, DILG Memorandum Circular No. 2022-119 and DILG Memorandum Circular No 2022-060 which empower the Local Government Units to implement measures that enhance peace and order and promote public welfare.
3. Balance Security and Privacy to ensure that the use of CCTV systems upholds the constitutional right to privacy and adheres to applicable data protection laws including the Data Privacy Act of 2012 (RA 10173). All installations and operations shall be limited to public spaces and areas necessary for security with strict safeguards against unauthorized access or misuse of recorded footage.
4. Promote Stakeholder Collaboration to foster partnership between the Municipal Government, Philippine National Police (PNP), Barangays, Private Establishments and Community Groups to integrate CCTV networks where feasible and ensure seamless coordination in responding to safety concerns and conducting investigation.
5. Establish Standards for Reliability to mandate consistent technical specifications, proper installation, regular maintenance and responsible management of CCTV systems to guarantee clear, usable footage and long- term functionality. This includes requirements for storage duration, equipment quality and designated personnel to oversee operations.
6. Support Local Development of the position of the Municipality as a safe and secure location for investment, tourism and community growth by leveraging technology to maintain a peaceful and orderly environment conducive to progress.

Section 3. DEFINITION OF TERMS-

1. CCTV SYSTEM- a closed circuit television cameras installed in strategic locations including all associated hardware (recorder, monitor, server) and software.
2. STRATEGIC AREAS- the pre-identified locations approved by the Local Chief Executive.
3. AUTHORIZED PERSONNEL- designated staff from the Municipal Disaster Risk Reduction and Management Office and from the Municipal Police Station and other approved units responsible for operating and managing the system.
4. FOOTAGE- video and audio recordings captured by the CCTV.
5. DATA SUBJECT- any individual whose personal information is captured by the CCTV System.

Section 4. APPROVAL AND RECOGNITION OF CCTV INSTALLATION- The Sangguniang Bayan hereby formally supports and recognizes the installation of CCTVs in the identified strategic areas/locations of the Municipality of Carmen, Province of Surigao del Sur.

Section 5. RESPONSIBLE ENTITIES-

1. The Overall Management: The Municipal Mayor shall oversee the implementation and ensure compliance with this Ordinance.
2. Technical Operation: The Municipal Disaster Risk Reduction and Management Office shall be responsible for system installation, maintenance, upgrades and data storage management.
3. Public Safety Use: The Municipal Police Station shall coordinate with the Municipal Risk Reduction and Management Office to access and use footage for crime prevention, investigation and traffic management purposes.
4. Data Privacy Compliance: The Committee on Laws of the Sangguniang Bayan shall review all policies and procedures to ensure adherence to the Data Privacy Act of 2012.

Section 6. OPERATION AND USE OF CCTV SYSTEM-

Coverage:

1. Cameras shall only monitor public spaces and areas accessible to the general public.
2. No footage shall be captured inside a private properties or areas where reasonable expectation of privacy exists.

Monitoring Hours:

1. The System shall operate twenty- four (24) hours a day and seven (7) days a week with continuous recording.

Footage Access:

1. Access to footage shall be limited to authorized personnel only.
2. Requests for footage must be in writing and accompanied by a valid purpose (criminal investigation, traffic accident inquiry).

3. Footage shall not be used for political purposes, harassment or any activity not related to public safety and order.

Footage Retention:

1. Recordings shall be retained for a maximum of 30 days unless required for on-going investigations or legal proceedings in which case they shall be preserved until the matter is resolved.

Section 7. DATA PRIVACY PROTECTION-

1. All personal information captured by the CCTV System shall be treated as confidential and protected from unauthorized access, use or disclosure.
2. The MDRRMO shall implement security measures (password protection, encryption, restriction of server) to safeguard data.
3. Signs shall be posted in all CCTV covered areas to inform the public that they are under video surveillance.
4. Data subjects shall have the right to request access to footage containing their personal information subject to verification and compliance with the Data Privacy Act.

Section 8. MAINTENANCE AND FUNDING-

1. The Office of the Mayor through the Peace and Order Plan (POP's Plan) shall allocate funds for the annual maintenance, repair and upgrade of the CCTV System as being included in the Annual Investment Program (AIP) and the Municipal Annual Budget.
2. The MDRRMO shall submit an annual performance report on System Performance and maintenance activities to the Sangguniang Bayan through the Chairman Committee on Peace and Security.
3. Additional funding may be sourced out from grants, partnerships or local revenues as approved by the Local Government.

Section 9. PROHIBITION & PENALTIES-

A. PROHIBITED ACTS-

1. Unauthorized access, modification or deletion of CCTV footage.
2. Disclosure of footage to unauthorized individuals or entities for unauthorized purposes.
3. Tampering with or disabling CCTV or any associated equipment.

B. PENALTIES- Violators shall be subject to:

FIRST OFFENSE- a fine of ONE THOUSAND FIVE HUNDRED PESOS (Php 1,500.00) and a stern Warning.

SECOND OFFENSE- a fine of TWO THOUSAND PESOS (Php 2,000.00) and for a government employee a suspension from Government duty for not more than One (1) Month.

THIRD AND SUBSEQUENT OFFENSES- a fine of TWO THOUSAND FIVE HUNDRED PESOS (Php 2,500.00) and a possible filing of criminal complaints under Republic Act No. 10173 otherwise known as the Data Privacy Act of 2012 and a relevant provisions of Republic Act No. 3815 otherwise known as the Revised Penal Code.

Section 10. REPORTING REQUIREMENTS- The Municipal Police Station (MPS) and the Municipal Disaster Risk Reduction and Management Office shall submit an annual Report to the Sangguniang Bayan through the Chairman Committee on Peace and Order as stated in Section 7.2 on the System’s effectiveness including crime trends, incident resolutions aided by CCTV footage and any issues encountered.

Section 11. SEPARABILITY CLAUSE- If any provision of this Ordinance is declared invalid and/or unconstitutional, the remaining provisions shall continue to be in full force and effect.

Section 12. REPEALING CLAUSE- All Ordinances, Resolutions or parts thereof inconsistent with this Ordinance are hereby repealed or modified accordingly.

Section 13. EFFECTIVITY CLAUSE- This Ordinance shall take effect twenty- one (21) days after the approval by the Municipal Mayor and posting in at least two (2) conspicuous places in the municipality.

ENACTED this 10th day of February, 2026 at Carmen, Surigao del Sur.

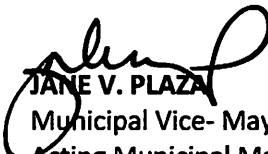
I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


CARLOS S. ESTRADA
SB Member/
Acting Municipal Vice- Mayor/
Presiding Officer

APPROVED:


JANE V. PLAZA
Municipal Vice- Mayor/
Acting Municipal Mayor
2-13-2026